

Devanshu Bose v. Electricity Ombudsman, Lucknow and 4 Others

High Court of Judicature at Allahabad · Division Bench · 21 May 2026 · 2026 SCC OnLine All 9193 · Writ - C No. 15943 of 2026 · **Still interlocutory; listed 9 July 2026 at 2:00 p.m. for rejoinder and licensee's no-theft affidavit.**

HEADNOTE

In a gated colony with prepaid house meters, the licensee may, under clause (j) of amended Part A of the Electricity Supply Code (Thirteenth Amendment), 2018, give individual connections on application and install a reference meter. Energy difference up to 4%/5% is allowed for transformation and LT losses; any excess is added to common-services consumption. A resident who says that difference is theft must demonstrate the theft (the negative cannot be proved) and indicate the point from which it is taking place. The licensee must inspect and file an affidavit that there is no theft in the residences. An earlier 28 April 2026 order had directed disclosure of the developer/RWA common-facility application under Clause 4.9 Part A(j). No final ratio yet.

FACTUAL SUMMARY

Devanshu Bose, a resident of a gated housing colony, appeared in person. He says there is a huge difference between electricity billed as supplied to the colony and the aggregate of prepaid house meters, and that this difference is recovered from residents as common-services charges though it is theft, not their consumption. On 28 April 2026 the Court noted Clause 4.9 Part A(j) (developer/RWA to apply for the common-facility connection) and directed the supply company to disclose that application by affidavit; listed 14 May 2026 with Writ-C No. 15954 of 2026. On 21 May 2026 the supply company filed a counter relying on the 2018 Thirteenth Amendment, clause (j) under amended Part A: residents' 29 August 2020 application led to prepaid meters; a reference meter was installed; difference beyond 4%/5% was added to common services.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

gated-colony-prepaid-meters-reference-meter-and-permitted-line-loss

HOLDING

Under clause (j) of amended Part A (Electricity Supply Code (Thirteenth Amendment), 2018), separate connections to individuals follow a prescribed new-connection application; the licensee may install a reference meter; energy difference up to 4%/5% is allowed for transformation and LT losses; difference beyond that for a billing cycle is added to common-services consumption. A resident alleging that the difference is theft must demonstrate the theft and indicate the point from which it is taking place; the negative cannot be proved. The supply company must inspect and file an affidavit that there is no theft in the residences. Rejoinder and that affidavit to be taken on the adjourned date. Listed 9 July 2026 at 2:00 p.m. The 28 April 2026 direction for disclosure of the developer/RWA common-facility application under Clause 4.9 Part A(j) remains part of the interlocutory record. No final view on recoverability. ¶ 1, 3-4

FLAG Interlocutory. The 21 May 2026 order cites the Thirteenth Amendment, 2018, clause (j) under amended Part A (reference meter; 4%/5% loss). The 28 April 2026 order cited Clause 4.9 Part A(j) of the 2005 Code (developer/RWA common-facility application). Keyed to UP-2005::4.9. No final ratio.

PRINCIPLE TAGS

connection-must-be-released-with-a-meter In a gated colony with prepaid house meters, the licensee may, under clause (j) of amended Part A of the Electricity Supply Code (Thirteenth Amendment), 2018, give individual connections on application and install a reference meter.. ¶ 1, 3-4

NOT DECIDED — WHETHER AND HOW COMMON-FACILITY OR LINE-LOSS CHARGES MAY BE RECOVERED FROM INDIVIDUAL RESIDENTS

¶ 1, 3-4

NOT DECIDED — WHETHER THE BILLED DIFFERENCE IS THEFT OF ELECTRICITY

¶ 3

SCJ-259 · Devanshu Bose v. Electricity Ombudsman, Lucknow and 4 Others · 2026 SCC OnLine All 9193 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.